

Chapter 3 — Data privacy principles

Privacy as a right becomes privacy as practice through agreements, representations, and design defaults

Learning objectives

- Define data privacy in pipeline terms, contrast three core privacy-management concepts
- Read GDPR versus HIPAA as planning maps, not compliance manuals

From rights to management practice

- Section 3.1 defined privacy as individuals' control over personal data
- This section asks which agreements and defaults make that control enforceable
- Personal data includes names and addresses but also behavioral logs
- Ethics still decides whether a use should proceed

Three core concepts

- Informed consent requires freely given
- Anonymization reduces linkability for secondary use
- Privacy by Design embeds protections into architecture from the start rather than bolting

Informed consent in healthcare

- Informed consent is the operational counterpart of respect for autonomy
- Example 3.11 shows a clinic that wants to reuse treatment records for research
- Bundling research into a general intake form fails the standard

Example 3.11 — Consent for healthcare data uses

- Example 3.11 — hands-on module
- The clinical consent bar
- Explore the chapter example module
- View files: ``modules/chapter3/example11/``

Privacy by Design

- Privacy by Design means minimization, protective defaults
- Should expose clear sharing and deletion controls before any partner sync

Example 3.12 — Privacy by Design in a health app

- Example 3.12 — hands-on module
- Example 3.12 pairs with the autonomy vignette in Example 3.6 but focuses on architecture
- Explore the chapter example module
- View files: ``modules/chapter3/example12/``

GDPR and HIPAA as anchors

- The GDPR governs personal data of people in the EU and EEA with extraterritorial reach for
- It emphasizes lawfulness, purpose limitation, minimization, accountability
- HIPAA concentrates parallel duties on protected health information held by US covered
- Section 3.6 expands scope, rights, and penalties

Takeaways

- Privacy management is more than notices
- Consent must be meaningful
- GDPR and HIPAA illustrate how principles become enforceable duties

Next

- Complete the quiz for this part
- Continue to privacy-preserving techniques, anonymization, encryption, differential privacy